

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
JUWAN HOLLIS,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD OFFICER
MELCHOR ALBAN (Tax Reg. # 939851),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Plaintiff Designates
Queens County
as the place of trial

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 11, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD OFFICER MELCHOR ALBAN (Tax Reg. # 939851), 104th Detective Squad, 104th Precinct, 64-
2 Catalpa Avenue, Queens, NY, 11385-5257

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
JUWAN HOLLIS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
MELCHOR ALBAN (Tax Reg. # 939851),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiff **Juwan Hollis**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, battery, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress, cruel and unusual punishment and implementation and continuation of an unlawful municipal policy, practice, and custom.

Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the Bronx County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER MELCHOR ALBAN, assigned Tax Registration # 939851, who at the time of this incident was employed with the Patrol Borough Queens North Anti-Crime Unit, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.¹
5. NYPD OFFICER MELCHOR ALBAN (Tax Reg. # 939851) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to

¹ At the time of this filing, the NYPD Employment Verification Unit confirms that NYPD Defendant Melchor Alban is now assigned to the 104th Detective Squad, and service will be made at this location.

the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on March 10, 2021.

STATEMENT OF FACTS

15. On September 4, 2019 at approximately 1:00 a.m. in the area of 34th Avenue and 12th Street in Queens County, New York, and at other locations in the area, numerous police officers in plainclothes from the Patrol Borough Queens North Anti-Crime Unit, and other unknown police commands, including upon information and belief, defendant NYPD Officer Melchor Alban (Tax Reg. # 939851) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at

times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On September 4, 2019 at approximately 1:00 a.m., Plaintiff was ordering food at the drive-thru window of the McDonald's Restaurant at 31-46 21st Street in Queens, New York. Plaintiff was driving a moped, of which he was the lawful owner. Prior to arriving at the restaurant, Plaintiff denies driving at a high rate of speed, going through steady red light signals, driving in a reckless manner, or disobeying any rules, regulations, and laws governing vehicle operation on the streets of New York City.
17. At that time, an unmarked vehicle positioned behind Plaintiff in the drive-thru lane began to honk at Plaintiff. Thereafter, individuals exited the vehicle and began to advance towards Plaintiff in a manner Plaintiff believed indicated the individuals' intent to steal his moped. At no time during this interaction did the individuals identify themselves as NYPD officers. Plaintiff, frightened because of the actions of the car's operator, and because he was uncertain who the operator was, left the drive-thru line, exited the McDonald's property and drove away. The unmarked car followed Plaintiff for several blocks. At no point did the operator of the car following Plaintiff use lights, sirens, a loudspeaker, or any other method of alerting Plaintiff that the vehicle was an NYPD vehicle, and that the occupants of the vehicle wanted Plaintiff to pull over. One of the occupants of the vehicle was defendant NYPD Officer Melchor Alban (Tax Reg. # 939851).
18. In the area of 34th Avenue and 12th Street in Queens, New York, Plaintiff's moped was struck by NYPD Defendants' vehicle, causing Plaintiff to fall to the ground. At that point, still uncertain who was chasing him or why they had struck him while he was driving his moped, Plaintiff began to run. The occupants of the vehicle, approximately three or four Defendant NYPD officers, including defendant NYPD Officer Melchor Alban, pursued Plaintiff on foot. All of the pursuing

officers were in plainclothes, and at no point during the foot pursuit did defendant NYPD officers instruct Plaintiff to stop, nor did they identify themselves as police officers, or issue any other instructions to him. Nevertheless, Plaintiff, physically unable to run any further, surrendered by laying on the ground with his hands behind his back, in a submissive pose.

19. Defendant NYPD officers, including NYPD Officer Melchor Alban converged upon Plaintiff, and only then identified themselves as NYPD officers. The Defendant officers then immediately, and without cause or justification, began to kick Plaintiff, step on his face, and punch him numerous times. At no time did was Plaintiff resisting arrest, threatening Defendant NYPD Officers in a physical or verbal manner, or in any way acting in a manner that would justify Defendant Officers' vicious assault and battery on Plaintiff.
20. After beating Plaintiff, Defendant NYPD Officers grabbed Plaintiff's arms, searched his person, and placed him in handcuffs and formally placed him under arrest.
21. Once the Defendant Officers approached Plaintiff at the McDonald's drive through, and at all times subsequent during his pursuit, assault and battery, and arrest, he was not free to leave.
22. Plaintiff, handcuffed and bleeding from his face, ear, and mouth, was transported to the 114th Precinct where he remained in custody until he was transferred to Queens Central Booking. Plaintiff was arraigned in Queens Criminal Court on September 4, 2019, and released on his own recognizance. From his arrest to his release, Plaintiff was incarcerated for approximately 17 hours. Despite obvious injuries to his face and mouth, Plaintiff was not taken to a hospital or offered or otherwise provided medical treatment.
23. During his confinement at the 114th Precinct and Queens Central Booking, respectively, Plaintiff was subjected to depraved, filthy and inhumane conditions.

24. While plaintiff was incarcerated at the 114th precinct and Queens Central Booking, defendants falsely and maliciously told the Queens County District Attorney's Office that Plaintiff had committed numerous crimes, including violations of the Vehicle and Traffic Law alleging red signal violations, one-way road violations, operating a vehicle without insurance, operating and unregistered vehicle, as well as Unlawful Possession of Marijuana in the Second Degree, Resisting Arrest, and Criminal Possession of Controlled Substance in the Seventh Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.
25. Plaintiff made between four and six additional court appearances after his arraignment before his case was dismissed and sealed on April 9, 2021.
26. As a direct result of Plaintiff's false arrest and malicious prosecution he was illegally detained for approximately 17 hours. As a direct result of Defendant Officers' unjustified and brutal assault and battery on Plaintiff, Plaintiff suffered lacerations to his to his face, ear, and mouth, as well as a broken front tooth. The care for Plaintiff's broken tooth required numerous dental appointments, x-rays, and ultimately, a procedure to repair the damage.

FIRST CAUSE OF ACTION

ASSAULT

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth herein. ^[11]_{SEP}
28. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused

apprehension of such contact in Plaintiff. Plaintiff was assaulted by Defendant NYPD Officer Melchor Alban and P.O. John and Jane Doe prior to his false and illegal arrest.

29. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^{[[L]]}_{SEP}
30. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^{[[L]]}_{SEP}

SECOND CAUSE OF ACTION

BATTERY

31. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 30 with the same force and effect as if more fully set forth herein. ^{[[L]]}_{SEP}
32. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. Plaintiff was forcibly kicked, punched, and stepped on by Defendant Officers NYPD Officer Melchor Alban and P.O. John and Jane Doe prior to his false and illegal arrest. ^{[[L]]}_{SEP}
33. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct. ^{[[L]]}_{SEP}
34. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^{[[L]]}_{SEP}

THIRD CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

35. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 34 as if fully set forth herein.
36. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
37. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**MALICIOUS PROSECUTION**

39. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.
40. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
41. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
42. Defendants commenced and continued a criminal proceeding against Plaintiff.

43. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
44. The prosecution and criminal proceedings terminated favorably to Plaintiff on April 9, 2021.
45. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
46. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

47. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

49. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
50. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter*

alia, assault, battery, unlawful search and seizure, detention, cruel and unusual punishment, and prosecution.

51. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
52. As a result of the foregoing, Plaintiff was subjected to assault, battery, illegal search and undue force upon his person over the course of his false arrest.
53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
54. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

55. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. Defendants owed a duty of care to Plaintiff.
57. Defendants breached that duty of care by subjecting him to unjustified acts of assault and battery, illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
58. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
59. All of the foregoing occurred without any fault by Plaintiff.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

61. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.
62. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
63. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great physical and emotional injuries.
64. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

66. All of the aforementioned acts of defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
67. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
68. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
69. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
70. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

71. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
72. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 used excessive force in assaulting Plaintiff at the time of his detention in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.

73. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by kicking and punching Plaintiff and stepping on his face and causing, *inter alia*, a broken tooth, and lacerations to his face, ear, and mouth.
74. In so doing, the conduct of OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
75. At the time that Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 detained Plaintiff, he was not resisting arrest or acting in a threatening or menacing manner. Plaintiff was not carrying or displaying weapons or any dangerous instruments. No orders were given by Police Officer Defendants to the Plaintiff to stop, remain in place, or otherwise act in a manner that failing to comply would in any way justify the use of physical force, let alone the extreme and outrageous physical contact Defendant Officers subjected Plaintiff to at the time of his detention and arrest.
76. As a result of the foregoing, Plaintiff was the victim of the torts of assault, and battery resulting in physical and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

77. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

78. As a result of the aforesaid conduct by defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
79. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
81. Plaintiff was searched by defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.
82. As a result of the aforesaid conduct by defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

83. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

84. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
85. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed numerous violations of the Vehicle and Traffic law and possessed a controlled substance when he did not.
86. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had committed numerous Vehicle and Traffic Law violations and possessed a controlled substance at the time of his arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest him for said offenses.
87. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
88. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's

constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

89. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

90. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
91. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of assault, battery, false arrest, unlawful imprisonment, cruel and unusual punishment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
92. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
93. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
95. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the Queens County District Attorney, including false allegations that Plaintiff committed any illegal acts, violations of the Vehicle and Traffic Law and/or possessed any contraband.
96. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
97. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
98. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
99. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
100. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
101. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
102. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.

103. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.
104. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
105. Specifically, defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
106. Notwithstanding the perjurious and fraudulent conduct of defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on April 9, 2021.
107. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF

CRUEL AND UNUSUAL PUNISHMENT UNDER 42 U.S.C. § 1983

108. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
109. Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 subjected Plaintiff to cruel and unusual punishment while Plaintiff was in care and custody of Defendants by denying Plaintiff access to timely and necessary medical treatment in violation of the Eighth Amendment to the United States Constitution.
110. After Defendants OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 committed the intentional torts of assault and battery against Plaintiff by kicking and punching Plaintiff and stepping on his face, causing, *inter alia*, a broken tooth, and lacerations to

his face, ear, and mouth, Plaintiff was in need of medical care. Nevertheless, Defendant Officers failed to provide Plaintiff medical treatment or transfer him to a hospital or other medical facility while he was in their care and custody at all times while under arrest, while detained at the 114th Precinct, and during transportation to Queens Central Booking.

111. In so doing, the conduct of OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 violated the obligation of Defendant City of New York to provide medical care for those it incarcerates. This deliberate indifference to the serious medical needs of Plaintiff while in Defendants' custody constituted unnecessary and wanton infliction of pain in violation of the Eight Amendment.

112. The conduct of OFFICER MELCHOR ALBAN and NYPD OFFICERS JOHN and JANE DOE #1-12 in failing to provide necessary medical care for Plaintiff while he was in their custody served no legitimate penological purpose, and the infliction of unnecessary suffering upon Plaintiff was and is inconsistent with contemporary standards of decency.

113. As a result of the foregoing, Plaintiff was unnecessarily forced to endure physical and psychological pain and suffering.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

114. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

115. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

116. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

117. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.

118. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

119. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.

120. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

121. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

122. The acts complained of deprived the Plaintiff of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, JUWAN HOLLIS, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
November 11, 2021

Respectfully submitted:

By: /s/ *Sydney O'Hagan*
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New York, New York 10005
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER MELCHOR ALBAN (Tax Reg. # 939851), 104th Detective Squad, 104th Precinct, 64-2 Catalpa Avenue, Queens, NY, 11385-5257

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
November 11, 2021

Sydney O'Hagan /s/

Sydney O'Hagan, Esq.